

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 16, 2026
8:30 a.m./1:30 p.m.

5. APRIL ROBINSON V. GORDON ROBINSON

PFL20210147

On April 9, 2026 Respondent filed a Request for Order (RFO) seeking enforcement of the Judgment and reimbursements. All required documents were personally served on April 29th in accordance with Family Code § 215.

Petitioner filed and served her Responsive Declaration to Request for Order on July 2, 2026.

On July 8th, Petitioner filed and served a Declaration of Petitioner in Opposition to Respondent's Request for Order, and her Income and Expense Declaration. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made July 2nd the last day for filing Petitioner's opposition therefore Petitioner's July 8th declaration is late filed. Despite the late filing, Petitioner asks the court to consider her declaration and states she would not object to the court allowing Respondent a reasonable opportunity to respond to the contents of the declaration.

Respondent is requesting an order for the immediate sale of the community residence located at 1100 Campbell Court in Rescue. He asks that he be given sole control over the sale and for the clerk to be appointed as elisor. He requests reimbursements from the sale proceeds in accordance with the Judgment for *Watts* charges, HOA costs, property taxes, pool maintenance, health insurance costs (Ollie Health), unreimbursed healthcare costs, and Petitioner's credit card bill, with an offset for Respondent's half of the homeowner's insurance, which totals \$103,810.34 in credits to Respondent. Finally, he asks for \$7,500 in sanctions pursuant to Civil Code § 1717 and Family Code § 271.

As of the time of filing her responsive declaration, Petitioner stated she was still in the process of gathering communications between the parties. She opposes the orders requested.

Given Petitioner's late filing, this matter is continued to Thursday, October 1st at 8:30 AM in Department 5. Supplemental declarations are to be filed no later than 10 days prior to the continued hearing date.

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TENTATIVE RULING #5: GIVEN PETITIONER'S LATE FILING, THIS MATTER IS CONTINUED TO THURSDAY, OCTOBER 1ST AT 8:30 AM IN DEPARTMENT 5. SUPPLEMENTAL DECLARATIONS ARE TO BE FILED NO LATER THAN 10 DAYS PRIOR TO THE CONTINUED HEARING DATE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.